

25STCV31764 25STCV31764

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-06-24

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Case Number: 25STCV31764 Hearing Date: June 24, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: June 24, 2026 TRIAL DATE: NOT SET

CASE: Lakiesha Boyce v. Lindsay Dahlin

CASE

NO.: 25STCV31764

DEMURRER TO COMPLAINT

MOVING

PARTY: Defendant Lindsay Dahlin

RESPONDING

PARTY(S): Plaintiff

Lakeisha Boyce

TENTATIVE RULING:

This

case raises an important and interesting Fourth Amendment issue. The Court would like to address that

issue. However, the Court declines to

address that (important) issue because it is not presented to the Court in a procedurally

appropriate manner that would allow the Court to consider the issue without causing

an additional procedural problem.

Dahlin

purports to demur to the Complaint in its entirety. The Demurrer does not

contain a separate statement of grounds setting forth the legal bases for

Dahlin's challenges to the Complaint. Code of Civil Procedure section 430.60

states that a demurrer "shall distinctly specify the grounds upon which any of

the objections to the complaint, cross-complaint, or answer are taken. Unless

it does so, it may be disregarded." (Emphasis added.)

Dahlin

does not distinctly specify the grounds for her demurrer. Moreover, despite

purporting to demur to the entire action for putative violations of the Fourth

and Fourteenth Amendments, that is not the principal basis for Dahlin's

challenge to the third cause of action for violation of the Unruh Civil Rights

Act. (See Memorandum of Ps. & As. p.16:2-12.) The Court therefore cannot construe the "Notice of Demurrer" as substantially fulfilling the function of a statement of grounds because it plainly does not reflect the actual grounds asserted.

Given

this failure, the demurrer is overruled.

The Court notes that this does not prevent Dahlin from raising the same substantive legal issue raised in the demurrer via a motion for judgment on the pleadings, motion for summary judgment, or through another procedurally-appropriate vehicle.

Accordingly,

Dahlin's Demurrer to the Complaint is OVERRULED.

Dahlin

is to serve and file her Answer to the Complaint within thirty

(30) days of this order.

Moving Party to give notice.

IT IS

SO ORDERED.

Dated: June 24, 2026 _____

Nicholas

F. Daum

Judge

of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you

submit on a tentative ruling the court will still conduct a hearing if any

party appears. By submitting on the tentative you have, in essence, waived your

right to be present at the hearing, and you should be aware that the court may

not adopt the tentative, and may issue an order which modifies the tentative

ruling in whole or in part.